

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 12, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Ken Esquibel (via Zoom), Bryan Cook (arriving at 6:12 p.m.), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White (via Zoom). Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Mr. Laybourn, and pursuant to support received by Mr. Segrave and Dr. Rinne, agenda item #22 was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on June 28, 2021. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive (Postponed from June 28, 2021). Seth Lloyd, Planning and Development Department, advised the annexation is dependent upon a county lot line adjustment which was denied and failed during an appeal. The applicant is seeking reconsideration by the County Commissioners on July 20, 2021 and staff and the applicant agree that postponing the item for 2 weeks would allow reconsideration instead of postponing indefinitely. Mr. Lloyd noted this is affiliated with the next item on the agenda which is for the zone change. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone indefinitely, seconded by Mr. Segrave. It was noted that city staff and the applicant have requested the motion to postpone indefinitely be voted down and instead postpone to the next meeting of the governing body. Motion failed. Voting “no” – all members of the governing body present. Dr. Rinne moved to postpone to July 26, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive (Postponed from June 28, 2021). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone indefinitely,

seconded by Mr. Segrave. Mayor Collins noted the desire of the staff and applicant is to vote down the motion to postpone indefinitely and instead postpone to the next meeting of the Governing Body on July 26, 2021. Motion failed. Voting “no” – all members of the governing body present. Dr. Rinne moved to postpone to July 26, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. Seth Lloyd, Planning and Development Department, explained the staff report indicated inclusion of the Dell Range right-of-way, however, there is consideration of including the right-of-way at the location due to WYDOT improvements. City staff including the City Engineer have confirmed the interest to include the right-of-way in the annexation and staff has requested a 2-week postponement to allow for a map revision to include the right-of-way in the ordinance and affiliated map. Mr. Lloyd advised the postponement isn’t anticipated to delay the project tremendously as the final plat will still have to be submitted. (It was noted for the record Bryan Cook, Councilman Ward II, joined the meeting at 6:12 during discussion and prior to vote on this item). Vicki Million-Hughes provided a handout related to the annexation and project proposal for the land noting the developer would like to place 50+ homes on the land. She commented on many concerns including obstructed views of the city skyline therefore requesting ranch style homes and buffers between properties, concern of what commercial property may be located on the land, accidents and traffic in the area and lack of green space in the subdivision. It was noted the ordinance is to annex the land into the city and the related ordinance will create the zoning. It was advised that the final plat for development actions will be submitted at a later date. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to July 26, 2021, seconded by Mr. Segrave. Mr. Lloyd explained upon inquiry that this project contained an agreement written into the original documents from county residential property owners on the hillside adjacent to the area that the property down the hillside would be serviced by city sewer services and it would be anticipated to be developed for urban uses in the future. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use and County LR Low Density Residential to CB Community Business, LR Low-Density Residential, and MR Medium-Density Residential for land located northeast of and adjacent to the intersection of Dell Range Boulevard, west of Whitney Road. Patty Lockley requested a meeting with the developer and nearby residents in the area be held prior to the next City Council meeting. Dr. Rinne moved to approve on third and final reading, seconded by Mr. Segrave. Dr. Rinne moved to postpone to July 26, 2021, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Creating a new Section 8.60.210, Liens, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Mayor Collins explained he had met with members of the banking community and the Chamber of Commerce and the recommendation at this time is that the ordinance and the 2 following affiliated ordinances be postponed indefinitely. Mayor Collins reported the effected parties will work on a

solution for the lien situation to be brought forward in the near future. Reporting for Finance Committee, Mr. Roybal advised there was no recommendation from the Committee. It was noted a main motion is necessary prior to a motion to postpone. Mr. Roybal moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. Roybal moved to postpone indefinitely, seconded by Mr. Segrave. City Attorney Michael O'Donnell, upon inquiry, provided procedural information relating to the motion to postpone indefinitely explaining it essentially kills an item, however, allows for the item to be reintroduced at a later time. Dale Steenbergen, President/CEO for the Chamber of Commerce, confirmed his willingness to serve on a committee to find a compromise to the lien issue between the City and the financial community. Concern was voiced relating to the motion to postpone indefinitely and it was noted that particular motion hasn't been common practice for the governing body. Motion to postpone indefinitely carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting "no".

ORDINANCE –3rd READING – Creating a new Section 12.04.240, Liens, of Chapter 12.04, Streets, Sidewalks, and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal advised there was no recommendation from the Committee. Mr. Roybal moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. Roybal moved to postpone indefinitely, seconded by Mr. Segrave. Motion to postpone indefinitely carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting "no".

ORDINANCE –3rd READING – Creating a new Section 15.24.030, Liens, of Chapter 15.24, Dangerous Building Code, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal advised there was no recommendation from the Committee. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Roybal moved to postpone indefinitely, seconded by Dr. Aldrich. Motion to postpone indefinitely carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting "no".

ORDINANCE –3rd READING – Amending various sections of Chapter 5.04, Business Licenses Generally, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body. (#4384)

ORDINANCE – 3rd READING – Amending various sections of Chapter 5.52, Massage Establishments, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body. (#4385)

ORDINANCE –3rd READING – Amending various sections of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming. Mr. Roybal advised there was no recommendation from the Committee. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Segrave. Mr. O'Donnell explained the amendment brings the ordinance up to date with the new administrative hearing process. Upon inquiry, Mr. O'Donnell explained that due to a miscommunication, this item did not receive a recommendation at the July

6, 2021 Finance Committee meeting. Motion carried. Voting “yes” – all members of the governing body. (#4386)

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming generally located southwest of Interstate 25 and Happy Jack Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. It was noted the annexation is unique due to the leased property being located adjacent to Warren Air Force Base (WAFB) and a request was made for additional information on the process. Comments were made regarding lack of WAFB involvement in the annexation process, history of previous land uses at this location, current grant opportunities relating to utility development on the site and information was provided regarding options for annexation of the land. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County X (Exempt) to SS (Support Services) for a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming generally located southwest of Interstate 25 and Happy Jack Road. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential-Medium Density for land located northwest of the intersection of Country Club Avenue and Snyder Avenue. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

ORDINANCE – 2nd READING – Amending the Unified Development Code (UDC) to create a Public Safety Fee requirement for residential, commercial, service, industrial, civic, public service, employment, agriculture, and other development in the city. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending Section 2.76.020, Members-Term-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Dr. Rinne moved to approve on second reading, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute dated July 6, 2021, seconded by Mr. Segrave. Mr. O'Donnell explained the substitute provides for initial Downtown Development Authority Board appointment to be made by the Mayor and adds a process to send suggestions to the Mayor for consideration. Support was expressed for the process and it was noted this is needed to help achieve goals for the downtown district. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting “no”.

RESOLUTION – Approving propositions to impose the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, for the exclusive purpose of funding specific purposes for specific amounts; the propositions to be voted on at a special election to be held November 2, 2021. Gunnar Malm, Laramie County Commissioner, explained that as of tonight, Laramie County and the towns of Albin, Pine Bluffs and Burns will have approved their resolutions and noted he felt the process went well, expressing appreciation to city staff. Mayor Collins thanked Laramie County Commissioners for their assistance during the process. Mr. Roybal moved to adopt, seconded by Dr. Aldrich. Mr. Roybal moved to amend by substitute dated July 6, 2021 at 1:52 p.m. which includes the following amendments made at the July 6, 2021 Finance Committee meeting: clarification to proposition numbering and removal of the “17th Street Lighting Project” in Proposition #10 and added the word “lighting” following the word “sidewalks” in Proposition #10, seconded by Dr. Aldrich. Opposition was voiced related to the removal of the language “17th Street Lighting Project” in Proposition #10 and the determination to remove it without obtaining governing body approval. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. (#6157)

RESOLUTION – Expressing the interest and support of the Governing Body in moving forward with the ‘Hyatt Place Hotel and Cheyenne Center’ Project. Dr. Rinne moved to adopt, seconded by Dr. Aldrich. Comments were made regarding the nature of the proposal and project including: city’s capacity to review the new proposal in various aspects of the development, vision for the project, public/private partnerships, future projects of this nature, opportunity to learn and look at what other municipalities are doing related to similar projects, concern for future limited opportunities for development and appreciation was expressed to the proponents for their proposal and to members of the governing body for their willingness to consider the project. Motion carried. Voting “yes” – all members of the governing body. (#6158)

[CA] RESOLUTION – Authorizing the City of Cheyenne to accept a grant award from the U.S. Department of Treasury for the American Rescue Plan Coronavirus State and Local Fiscal Recovery Funds in the amount of \$12,191,813. Motion (per Consent Agenda) carried. (#6159)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to apply for a Small Business Administration Shuttered Venue Operators Grant to recoup a portion of revenue losses incurred as a result of mandatory coronavirus induced Civic Center closures. Motion (per Consent Agenda) carried. (#6160)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to apply for a Cheyenne Community Recreation District Recreation Mill Grant to purchase scoreboards and sound systems for the Cheyenne Junior League Athletic Complex. Motion (per Consent Agenda) carried. (#6161)

[CA] RESOLUTION – Authorizing the expansion of the Capitol North Historic District and the addition of one hundred nineteen (119) structures to the contributing structures list maintained by the City’s Planning Office. Motion (per Consent Agenda) carried. (#6162)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to submit a proposal to apply for an Office of Local Defense Community Cooperation, Department of Defense, Defense Community Infrastructure Program Grant to build an indoor sports complex to support the military family quality of life Infrastructure of Francis E. Warren Air Force Base Service Members and their families – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Waterford Square 3rd Filing, a replat of Lots 28 & 29, Block 7, Lots 1 & 31, Block 5 and a portion of Tray More Boulevard and adjacent alleys, Waterford Square, City of Cheyenne, Laramie County, Wyoming (located south of the intersection of Tray More Boulevard and Waterford Boulevard) – referred to Public Service Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Sweetgrass, 7th Filing, a subdivision of a portion of the N½ of Section 16, Township 13 North, Range 66 West of the 6th P. M., City of Cheyenne, Laramie county, Wyoming (located south of East College Drive and adjacent to Sweetgrass Drive) – referred to Public Services Committee. (Sponsor – Dr. Rinne)

[CA] Lease agreement between XESI and the City of Cheyenne, Information Technology Department, to lease 1 copier for duplication services (General Fund). Motion (per Consent Agenda) carried. (#7367)

[CA] Professional Services Agreement between Y2 Consultants, Jackson, WY, and the City of Cheyenne, Metropolitan Planning Organization (MPO), for the East Pershing Boulevard Design Plan (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$94,036.00). (#7368)

[CA] Agreement between the City of Cheyenne, Cheyenne Police Department, and Laramie County School District No. 1 for law enforcement services at various schools and school-related events (Revenue to the City). Motion (per Consent Agenda) carried. (#7369)

[CA] Memorandum of Agreement between the 153D Airlift Wing, Wyoming Air National Guard, and the City of Cheyenne, Cheyenne Police Department for Law Enforcement Assistance. Motion (per Consent Agenda) carried. (#7370)

[CA] Easement and Assignment of Lease Agreement between the City of Cheyenne and Eco-Site, LLC, Boca Raton, FL, for a tower, utility and access easement (Revenue to the City). Motion (per Consent Agenda) carried. (#7371)

[CA] Lease Agreement between the City of Cheyenne and Wyoming Department of Environmental Quality (WDEQ) for the installation and use of ambient air quality and meteorological monitors (Revenue to the City). Motion (per Consent Agenda) carried. (#7372)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services (General Fund). Mr. Roybal moved to approve in an amount not to exceed \$425,000, seconded by Mr. Segrave. Mr. Roybal moved to amend by substitute dated June 30, 2021, seconded by Mr. Segrave. Mr. O'Donnell explained the substitute noting it is for a period of time not to exceed 6 months and payment is at the monthly rate the Cheyenne Animal Shelter requested from the city. Motion to amend by substitute carried. Voting "yes" – all members of the governing body with exception of Mr. Johnson voting "no". Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Johnson voting "no". (#7373)

Memorandum of Agreement between Robin and Debbie Courtier, the City of Cheyenne, and the Wyoming Department of Transportation for the study of downstream storm water problems. Mr. Roybal moved to approve, seconded by Mr. Segrave. Mr. Roybal reported that due to a recent verbal agreement being reached and in an effort to expedite the use of the Detention Pond Easement, this item was reviewed under other items for the agenda at the July 6, 2021 Finance Committee Meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Roybal moved to amend by substitute dated July 7, 2021, seconded by Mr. Segrave. Mr. O'Donnell reported the substitute includes removal of #10 under the "Now, therefore, in consideration of the mutual benefits and burdens assumed by each party to this agreement" paragraph relating to costs that will be paid by the City, WYDOT and others. He advised there may be an agreement for these fees in the future that will allow for the cost sharing to be determined at a later date. Motion to amend by substitute carried. Voting "yes" – all members of the governing body with the exception of Dr. Rinne voting "no". Tom Cobb, City Engineer, was complemented for his efforts related to the memorandum of agreement and it was noted members of the governing body look forward to learning more on the process. Comments were made that the draining issue has had substantial negative effect on how the city evaluates development projects relating to drainage concerns. It was noted that drainage concerns have been expressed by property owners further downstream near Child's Draw. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook and Dr. Rinne voting "no". (#7374)

[CA] Memorandum of Understanding between Laramie County, Wyoming, and the City of Cheyenne, Wyoming, for EOD, SWAT, and CNU operations and extraterritorial law enforcement assistance and activities – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and SpyGlass Group, LLC, Westlake, OH, for communications services auditing – referred to Finance Committee.

[CA] Merchant Agreement between the City of Cheyenne and RecTrac, LLC d/b/a Vermont Systems, for credit card processing of Recreation related services – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7231 between the City of Cheyenne and Burns and McDonnell for a force majeure for additional architectural and inspection services for the Landfill Front Entrance and Scale House Construction Support Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Contract Modification #3 to Contract #6625 between the City of Cheyenne and Western Research and Development, Ltd., for additional design services for the 2018 On Call Traffic Engineering Services Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Reappointment of Jay Sullivan to the Laramie County Community Juvenile Services Joint Powers Board. Mr. Segrave moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Announcement was made that the July 26, 2021 City Council meeting will be held in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting at Noon instead of 6:00 p.m.

Under other business:

Mayor Collins explained he has been working on the Urban Renewal Authority Board and has received all applications and would like to appoint the board members at this meeting to allow them to address the Hitching Post issue. Kris Jones, City Clerk, read into the record the names for appointment: Appointment of Katie Brown, Ken Dugas, Hugh Robert Graham, Chet Halvorson, and Ryan Whitehead to the Urban Renewal Authority Board. Mr. Segrave moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Mayor Collins advised he was contacted on Friday, July 9, 2021 by the Fire Union to see if they could meet with him and the City Attorney relating to the Fire Department’s contract with the city. Mayor Collins reported he would like to meet in Executive Session regarding the meeting held and noted there will be no further action taken after the meeting and that the regular meeting of the governing body will be adjourned following adjournment of the Executive Session. Mr. O’Donnell advised there will be no further business after Executive Session and that adjournment of the regular meeting will not be on video. Dr. Rinne moved to meet in executive session at 7:07 p.m., seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

Following adjournment of the Executive Session, Mayor Collins reconvened the regular meeting of the governing body at 7:33 p.m. and there being no further business to come before the governing body, the meeting was officially adjourned at 7:34 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
July 22, 2021